

25NNCV01590 25NNCV01590

County: los-angeles

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Hearing date: 2026-09-08

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Case Number: 25NNCV01590 Hearing Date: September 8, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

Christopher Siraganian, Caroline

McLoughlin,

Plaintiffs,

vs.

Stillwater Insurance Co. and DOES

1 through 10,

Defendants.

Case

No.:

25NNCV01590

Hearing

Date:

September

8, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES, SET FOUR

MOVING PARTY: Plaintiff Christopher Siraganian

RESPONDING PARTY: Defendant Stillwater Insurance Company

The Court

considered the moving papers, opposition, and reply filed in connection with the
instant motion.

BACKGROUND

On March 10, 2025,

Plaintiffs Christopher Siraganian ("Plaintiff") and Caroline McLoughlin
(collectively, "Plaintiffs") brought this action against Defendant Stillwater
Insurance Company ("Defendant"), alleging causes of action for (1) breach of
contract, (2) breach of statutory duty, (3) breach of the covenant of good
faith and fair dealing, (4) fraud, (5) negligence, and (6) intentional
infliction of emotional distress. The causes of action arise out of an
insurance claim dispute after Defendant alleged declined coverage for
Plaintiffs' loss of their home in the Eaton Fire.

On September 30, 2025,

Plaintiffs filed a first amended complaint.

On January 23, 2026,

Plaintiffs filed their second amended complaint, alleging causes of action for
(1) breach of contract, (2) breach of statutory duty, (3) breach of the
covenant of good faith and fair dealing, (4) constructive fraud, and (5)
negligence misrepresentation.

On June 23, 2026,

Plaintiff filed the instant motion to compel further responses to Special Interrogatories, Set Four (the “SROGs”), from Defendant.

On August 25, 2026,
Defendant filed an opposition.

On August 26, 2026,
Plaintiff filed a reply.

LEGAL STANDARD

Within 30 days after service of
interrogatories, the responding party must serve responses unless otherwise
stipulated or ordered. (Code Civ. Proc., § 2030.260, subd. (a).)

Code of Civil Procedure section 2030.300 provides that a propounding
party may move for an order compelling further responses if:

- (1) an answer is evasive or incomplete;
- (2) the exercise of option to produce documents is unwarranted or
inadequate; or
- (3) an objection is without merit or too general.

(Code
Civ. Proc., § 2030.300, subd. (a).)

If a party fails to timely respond, objections are
waived unless the court relieves the waiver upon a showing of mistake,
inadvertence, or excusable neglect and a subsequently served
compliant response. (Code Civ. Proc., § 2030.290.)

A motion to compel further responses must be brought within 45 days of
service of verified responses. (Code Civ. Proc., § 2030.300, subd. (c); *Sexton*
v. Superior Court (1997) 58 Cal.App.4th 1403, 1409; *Vidal*
Sassoon, Inc. v. Superior Court (1983) 147 Cal.App.3d 681, 685.)

DISCUSSION

A. Timeliness

On February 27, 2026,
Plaintiffs served the SROGS on Defendant. (Hancock Decl., ¶ 3, Exh A.) On May
6, 2026, Defendant served responses. (Hancock Decl., ¶ 4, Exh. C.)

Plaintiffs had 45 days, plus two
additional days for electronic service, to file motions to compel further
responses. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The motion filed June 23, 2026
is therefore timely.

B. Separate Statement

California Rules of Court,
rule 3.1345 requires a separate statement for motions to compel further
responses.

Plaintiff filed a separate
statement that includes references to counsel's declaration and the exhibits
attached thereto. "The separate statement must be full and complete so that no
person is required to review any other document in order to determine the full
request and the full response. Material must not be incorporated into the
separate statement by reference." (Cal. Rules of Court, rule 3.1345(c).) Despite
the deficiency, the court turns to the merits of the motion.

C. Meet and Confer

A motion to compel further
responses must be accompanied by a meet and confer declaration
showing a reasonable and good faith effort to resolve the dispute. (Code Civ.
Proc., § 2016.040; § 2030.300, subd. (b)(2).)

The parties satisfied this
requirement. (Hancock Decl., ¶ 6.)

D. SROGs

Plaintiff seeks a further response to Interrogatory Nos. 69, 70, 71, and 72. Defendant served further responses on August 25, 2026. (Yu Decl., ¶ 10, Exh. D.) Courts are not precluded from considering a motion to compel further responses when the responding party serves further responses after a motion to compel further is brought. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 407.) Plaintiff argues the further responses do not resolve the issues raised in the motion. (Reply, p. 2.) Therefore, the Court continues to analyze the merits of the motion.

SROG No. 69

This interrogatory is vague, ambiguous, and speculative in the phrase “made the determination.”

Motion denied.

SROG No. 70

Defendant’s further response is sufficient. Defendant explains that it is not aware of any person who directed it to change the “bill to.”

Motion denied.

SROG No. 71

Defendant’s further response is sufficient. Defendant explains that the Offer of Renewal was transmitted by Assurant, and details how the transmission occurred.

Motion denied.

SROG No. 72

This interrogatory is vague and ambiguous as to “each and every person that lead Stillwater to believe that Assurant was responsible.”

Motion denied.

E. Sanctions

Code of Civil Procedure

section 2023.030 authorizes monetary sanctions for misuse of the discovery process.

Sanctions are not warranted against

Defendant because the motions were denied as Defendant provided proper responses and objections. However, “[t]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).) Here, Plaintiff unsuccessfully makes this motion to compel further responses without substantial justification.

Defendant’s counsel requests \$1,770.00

in sanctions for five hours of attorney work preparing the opposition to Plaintiff’s motion and an anticipated hour reviewing the reply brief and attending the hearing on the instant motion at a billable rate of \$295.00 per hour. (Yu Decl., ¶¶ 13-14.) The Court finds the hourly rate reasonable but reduces the time claimed due to the motion’s lack of complexity.

The Court awards sanctions in

the reduced amount of \$590.00 for two hours of attorney work. Sanctions are imposed jointly and severally against Plaintiff and counsel of record.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff’s motion to compel further responses to Special Interrogatories, Set Four, Nos. 69, 70, 71, and 72.

Monetary sanctions are imposed against Plaintiff and counsel of record, jointly and severally, in the amount of \$590.00, payable to counsel for Defendant within 20 days of notice of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 8, 2026

Sarah
J. Heidel

Judge
of the Superior Court